VENDOR SERVICE CONTRACT

Nautilus Onyx Tower | Richmond, VA

Owner	Nautilus Onyx Tower Owner LLC
Contractor	SafeGuard Fire & Life Safety
Services	fire alarm and sprinkler inspection
Property	Nautilus Onyx Tower
Effective Date	June 5, 2022

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform fire alarm and sprinkler inspection at Nautilus Onyx Tower in accordance with the specifications attached hereto. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

2. Term and Termination. This Contract commences on the Effective Date for a term of 17 months and may be terminated by either party on thirty days' written notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of VA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of VA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Nautilus Onyx Tower Owner LLC

By: Victor Hughes Title: Authorized Signatory Date: 06/05/2022

_____

Lumen Software Inc.

By: Daniel Jackson Title: Manager Date: 06/05/2022

Exhibit A - Property

Nautilus Onyx Tower, 4130 Sunset Avenue, Richmond, VA 94456. Parcel containing approximately 22.82 acres, together with all improvements thereon.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only